

25STCV09460 25STCV09460

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-09-17

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Case Number: 25STCV09460 Hearing Date: September 17, 2026 Dept: 514

Houston

Specialty Insurance Company v. Tressler, LLP

25STCV09460

Plaintiff's Motion

to Quash Subpoena for Production of Records to Non-Party Wood Smith Henning
& Bennett, LLP

Tentative Ruling

The motion to quash the subpoena is granted.

On March 12, 2026, Defendants issued a
subpoena for the production of business records to Non-Party
Wood Smith Henning & Bennett, LLP ("WSHB").

In the subpoena, Defendants seek all, or substantially all, of the WSHB's
file in connection with the firm's representation of Plaintiff's insured Shu
Luu Hoang.

Ms.

Hoang was previously represented by Defendants.

As Ms. Hoang (and Plaintiff) assert that Defendants committed legal
malpractice in their representation of Ms. Hoang, Evidence Code section 958 likely
applies to attorney-client communications between Ms. Hoang and Defendants. But that does not mean that Ms. Hoang has
waived her right to assert the attorney-client privilege with regard to
communications with her current attorneys, WSHB, whom she retained after the
termination of her attorney-client relationship with Defendants.

The

extremely broad subpoena issued by Defendants on March 12 extends to matters plainly covered by the attorney-client privilege and also likely the work product doctrine. It is so extensive, and covers so much protected material, that the Court exercises its discretion to quash the subpoena.

On that

basis, the subpoena is quashed.

This

ruling does not preclude Defendants from issuing a more narrowly tailored subpoena to WSHB seeking information not protected from disclosure.

Moving

party is ordered to give notice.